141 PROPOSITION

SENATE CONCURRENT RESOLUTION 1004

A CONCURRENT RESOLUTION

PROPOSING AN AMENDMENT TO THE CONSTITUTION OF ARIZONA; AMENDING ARTICLE IX, CONSTITUTION OF ARIZONA, BY ADDING SECTION 26; RELATING TO TAXATION.

Be it resolved by the Senate of the State of Arizona, the House of Representatives concurring:

1. Article IX, Constitution of Arizona, is proposed to be amended by adding section 26 as follows if approved by the voters and on proclamation of the Governor:

26. Vehicle miles traveled; taxing, monitoring and limiting prohibited; exception

SECTION 26. A. THIS STATE AND ANY COUNTY, CITY, TOWN, MUNICIPAL CORPORATION OR OTHER POLITICAL SUBDIVISION OF THIS STATE MAY NOT DO EITHER OF THE FOLLOWING:

1. IMPOSE A TAX OR FEE ON ANY PERSON BASED ON THE VEHICLE MILES TRAVELED BY THE PERSON IN A MOTOR VEHICLE.

2. ENACT ANY RULE OR LAW TO MONITOR OR LIMIT THE VEHICLE MILES TRAVELED BY A PERSON IN A MOTOR VEHICLE UNLESS THE RULE OR LAW REQUIRES THAT THE PERSON VOLUNTARILY CONSENTS TO THE MONITORING OR LIMITATION.

B. THIS SECTION DOES NOT APPLY TO EITHER OF THE FOLLOWING:

1. AN INTERSTATE AGREEMENT THAT IS ESTABLISHED TO ADMINISTER THE PAYMENT OR REPORTING OF FUEL TAXES OR REGISTRATION FEES FOR COMMERCIAL VEHICLES THAT OPERATE IN MORE THAN ONE STATE.

2. A MOTOR VEHICLE OWNED AND OPERATED BY ANY ENTITY LISTED IN SUBSECTION A OF THIS SECTION.

2. The Secretary of State shall submit this proposition to the voters at the next general election as provided by article XXI, Constitution of Arizona.

ANALYSIS BY LEGISLATIVE COUNCIL

Proposition 141 would amend the Arizona Constitution to prohibit this state and any county, city, town, municipal corporation or other political subdivision of this state from:

1. Imposing a tax or fee based on the number of miles a person travels in a motor vehicle.

2. Monitoring or limiting the number of miles a person travels in a motor vehicle, unless the person voluntarily consents.

Proposition 141 would not apply to the following:

1. The miles traveled by a person in a motor vehicle if the motor vehicle is a commercial vehicle that operates in more than one state and an interstate agreement is established for reporting fuel taxes or registration fees.

2. The miles traveled by a person in a motor vehicle if the motor vehicle is owned and operated by this state or a county, city, town, municipal corporation or other political subdivision of this state.

ARGUMENTS "FOR" PROPOSITION 141

"Vote YES on Proposition 141, the Freedom to Move Act.

I'm not against technology. I embrace it. But new technology should never come at the cost of our fundamental freedoms and civil liberties. At some point in history, indoor plumbing was cutting edge. Today, our toilets don't surveil us, censor us, or track our every movement. Technology should serve people, not control them. Vehicle mileage tracking is surveillance, plain and simple.

Arizona can find ways to ensure electric vehicles contribute their fair share to road maintenance without building an invasive tracking infrastructure. Tax the tires. Tax charging stations. Get creative. But monitoring and surveillance of our travel is unacceptable.

The Freedom to Move Act would make Arizona the first state in the nation to constitutionally prohibit the government from tracking, taxing, or limiting vehicle miles traveled. It draws a clear line: you can fund roads without spying on citizens.

Technology should enhance our freedom, not erode it. Vote YES on Prop 141."

Hans VanDanElzen, Gilbert
Sponsored by AZ Free Enterprise

Vote YES on Proposition 141, the Freedom to Move Act.

We already pay more than enough in taxes to maintain our roads and infrastructure. The government doesn't need to install tracking devices in our vehicles or monitor our mileage to collect revenue. They need to use the money we're already giving them responsibly.

A mileage tax isn't about funding roads. It's about collecting granular data on where you drive, when you drive, and how often. That level of surveillance has no place in a free society. The government has no business knowing whether you drove to the grocery store, your workplace, or your doctor's office.

Arizona can fund transportation without spying on its citizens. Other solutions exist that don't require turning every vehicle into a tracking device feeding data into government databases.

The Freedom to Move Act would make Arizona the first state to constitutionally prohibit VMT tracking and taxation. It's a permanent protection that keeps government out of our daily movements. Vote YES on Prop 141.

Gregory Gonzalez, Mesa
Sponsored by AZ Free Enterprise

Vote YES on Prop 141, the Freedom to Move Act.

A per-mile tax punishes the people who can least afford it. Whether that is rural families driving long distances to work or school or suburban commuters with no other option. Or tradespeople whose trucks are their livelihood. These are the Arizonans who would pay the most under a mileage tax, while wealthier urban residents drive less and pay less.

And it doesn't stop with individual drivers. A mileage tax raises the cost of every product on every shelf, because every one of them got there by truck. When you tax delivery drivers by the mile, those costs get passed directly to consumers. Groceries, medicine, building materials. Everything costs more. And that is terrible for Arizona's economy.

A YES on Prop 141 will help keep Arizona affordable!

Richard Martin, Tucson
Sponsored by AZ Free Enterprise

Spelling, grammar and punctuation were reproduced as submitted in the "for" and "against" arguments.

Vote YES on Prop 141 to protect your privacy and freedom to drive.

A few years ago, my auto insurance company put a tracking device on our car. It knew exactly where and when we drove, every single trip, and was not always accurate. It wasn't worth the few dollar savings to live with that intrusion, so we got rid of it.

Now imagine the government doing the same thing, but you can't opt out. That's what a mileage tax means. Every trip to work, the doctor, church, your kid's school, or any activity you use your vehicle for gets logged and sits in a government database that could be compromised at any time. And then they tax you for it.

With so many other states already using VMT programs, we need to protect Arizona from them now. The federal infrastructure law has already introduced pilot programs nationwide. If we don't pass Prop 141, Congress could mandate participation and we'd have no legal shield to say no.

The Freedom to Move Act puts constitutional protection in place, where only voters can undo it, not politicians who want to increase their budgets. Vote YES on Prop 141 and keep driving free and private.

Linda Jorgensen, Sun City
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141, the Freedom to Move Act.

My family has four adults, and we each have different places we need to go in a day between work, errands, appointments, and taking care of what needs to be done. We need to be able to move freely without worrying about being tracked or having to pay extra for that freedom.

A vehicle miles traveled tax means the government has to keep track of our movement. Every trip gets logged in a database. It feels creepy and like big government is watching our every move and taxing us for it. That is an invasion of privacy and it goes against our freedoms as Americans.

The Freedom to Move Act protects our right to go about our business without government surveillance or per-mile charges following us around.

My family strongly opposes vehicle miles traveled taxes and all that goes with it. We deserve the freedom to move without big government watching and taxing every mile and that is why we will be voting YES on Prop 141.

Anne Rankin, Phoenix
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141, the Freedom to Move Act.

Arizona has many rural communities whose residents shouldn't be punished because they don't live in a city. The distances we drive in rural areas aren't optional. They're necessary. Getting to work, buying groceries, seeing a doctor. Everything requires driving because services are spread out across miles, not blocks.

A vehicle mileage tax charges you for every mile you drive. The farther out you live, the more you pay. It penalizes people who choose or need to live outside urban centers, making rural life financially harder.

Even residents in suburbs who work in Phoenix or Tucson would be financially harmed by a VMT tax. We shouldn't tax people for trips they can't avoid.

Lots of states are looking to VMT programs right now and Arizona needs to draw the line now. The Freedom to Move Act preserves the lifestyle and freedom we love in Arizona!

Vote YES on Prop 141.

DIANNE UhlesJohns, Oracle
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141 — the Freedom to Move Act.
A mileage tax is outright government surveillance of your everyday life. It forces GPS tracking, smartphone apps, or mandatory odometer reports to log every single mile you drive. Your trips to work, church, the doctor, your kid's school, or a family visit — all recorded in a permanent government database. That's not taxation. That's Big Brother knowing exactly where you go, when, and how often.
Twenty-four states already run these Vehicle Miles Traveled programs, and federal law has paved the way for nationwide mandates. If Arizona doesn't act, Congress could force us into the system with no way out. Prop 141 puts a constitutional shield in place — one only voters can remove.
This invasive tax punishes rural families, suburban commuters, and working tradespeople who depend on their vehicles. It also drives up the cost of every product on every shelf.
Arizona was built on open roads, independence, and personal freedom. The Freedom to Move Act locks that freedom into our Constitution.
Vote YES on Prop 141.
Reject government tracking. Protect your privacy. Keep Arizona free.

Cara Kretz, Sedona

Vote YES on PROP 141

Implementing a government mileage tax or vehicle tracking system would deal a devastating blow to Arizona's working families.

Hardworking, low-income individuals who take on second jobs just to get by would be unfairly penalized for every extra mile they commute. Even worse, many of the flexible, independent jobs people rely on today, such as rideshare driving and delivery services, would become financially unsustainable if workers are taxed for every mile they are on the road.

A vehicle tracking system does more than hurt wallets; it isolates us. It creates an artificial barrier that restricts our freedom to choose where we work, which healthcare providers we visit, and how often we can travel to see friends and family.

Our constitutional right to the pursuit of happiness depends on our ability to move freely without government surveillance or a per-mile penalty. We must protect our independence, our gig-workers, and our families.
Vote YES on PROP 141 to ban a mileage tax permanently.

Misty Portwood, Phoenix
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141 to prevent more government control over your life.

A mileage tax gives the government another excuse to watch what you do, where you go, and how you live. GPS tracking, smartphone apps, databases logging your trips - that's just more surveillance and control.

Make Arizona the first state to ban mileage taxes, invasive tracking, and driving rations in our constitution, where politicians can't undo it without our permission.

Government doesn't need more power over us. It needs less. Vote YES on Prop 141.

Dennis Ryan, Scottsdale
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141, the Freedom to Move Act.

After a career spent teaching Arizona's students, I'm retired and looking forward to enjoying my freedom. That includes driving when and where I want without government interference.

A mileage tax means the government decides how much your travel costs and tracks every mile you drive to collect it. Twenty-four states already have VMT programs or have started pilot programs doing exactly this.

I don't want government monitoring my visits to see family, my weekend trips exploring Arizona, or my daily errands. Those decisions are mine to make, not the government's.

I worked hard for my retirement. I shouldn't have to ask permission or pay extra fees to enjoy it. Vote YES on Prop 141.

Joseph Malloy, Dewey
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141 and reject taxing and tracking every mile we drive.

Arizona is not California or New York. We are not set up for mass transit systems as alternatives to driving - plus we like the wide open space built for personal vehicle travel! A per-mile tax punishes people who drive the most: people who live in rural areas, tradesmen who drive trucks, and commuters who cannot afford or don't want to live close to their jobs.

This measure penalizes the family unit by tracking visits with grandparents, grandchildren, and vacations. The small business owners who depend on deliveries and service calls will see their margins shrink, making everything more expensive.

Prop 141 will prevent government from intrusively tracking every mile we drive in their database. Many other states have already implemented VMT programs. Arizona needs to draw the line now, before we lose the chance to protect ourselves.

The Freedom to Move Act would make Arizona the first state to constitutionally ban mileage tracking and mileage taxes. It would prevent future legislatures from implementing a vehicle movement tax or limitation. Arizonans must keep our freedom to move.

Vote YES on Prop 141 and keep Arizona free!

Lisa Stuessel, Oro Valley
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141, the Freedom to Move Act.

I choose to cycle for short trips and drive when I need to cover long distances. Those are my decisions to make, not the government's. A vehicle miles traveled tax takes that freedom away by tracking every mile and charging you for it.

Look at what's already happening across the country. Utah's VMT program uses plug-in devices and smartphone apps that include location data. Virginia tracks drivers with or without GPS. Oregon offers GPS tracking as one of its options. These aren't theoretical programs. They're real systems collecting real data on real people right now.

Thirty-seven states have already researched or joined coalitions testing VMT policies. The trend is spreading fast, and Arizona needs to stop it before it starts here.

The Freedom to Move Act would make Arizona the first state to constitutionally ban mileage tracking and mileage taxes. It protects your right to choose how you travel without government surveillance or fees.

Keep your freedom to decide for yourself. Vote YES on Prop 141.

Patricia Keitel, Sun City
Sponsored by Az Free Enterprise Club

Spelling, grammar and punctuation were reproduced as submitted in the "for" and "against" arguments.

Vote YES on Prop 141 to protect rural families from being punished for where they choose to live.

I'm retired and live in Gold Canyon. The closest stores are 15 to 30 minutes away. That's my choice, and I'm happy with it. But many of my neighbors live out here because it's what they can afford, or because they work in a family business, or because this land has been in their family for generations. A mileage tax would punish all of us for living in rural and suburban areas where driving long distances isn't optional.

A VMT tax charges you for every mile you drive. The farther out you live, the more you pay. It penalizes people who can least afford it, people who didn't choose distance for luxury but out of economic necessity or family ties.

Arizona should remain free. People should be free to choose where they live without being taxed or tracked for that choice. The Freedom to Move Act would make us the first state to constitutionally ban mileage taxes and tracking.

Vote YES on Prop 141 and keep Arizona free.

Elizabeth Cluff, Gold Canyon
Sponsored by AZ Free Enterprrise Club

Vote YES on Prop 141 to stop a tax that makes driving even more expensive.

It is already expensive to own a car with registration fees, insurance, maintenance, and gas. We don't need politicians adding a new tax on top of all that just to drive the miles we need or simply want to drive. There is no reason to increase the cost except for political greed. In fact, in other states, these taxes are used to fund projects that don't even benefit our roads and drivers.

With the distances we travel in Arizona, a mileage tax becomes prohibitive fast. Just getting to work, running errands, and visiting family across the state, the miles add up because everything is spread out. A per-mile tax punishes people for living in a state where you have to drive to get anywhere.

The Freedom to Move Act protects us from a scheme that makes driving unaffordable.

Vote YES on Prop 141!

Gordon Gallagher, Arizona City
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141, the Freedom to Move Act.

A mileage tax is unfair to everyone. It doesn't matter what you do for a living, what party you belong to, or how much money you make. If you drive, you pay. And you get tracked doing it.

That's what this is really about. Many states already have programs or pilot programs that monitor where drivers go and charge them per mile. It's been proven to be a method of tracking people's movements whether with GPS devices, smartphone apps, or odometer reports. Your trips are logged in a government database.

Arizona can stop this before it starts. The Freedom to Move Act would make us the first state to constitutionally ban mileage taxes and tracking. That protection applies equally to all of us, no exceptions.

We all deserve the freedom to drive without surveillance or per-mile charges. Vote YES on Prop 141!

Michael Swalko, Tucson
Sponsored by AZ Free Enterprise Club

"Vote YES on Proposition 141 to stop the government from tracking your mileage.

The government should never be allowed to monitor where we drive or how many miles we travel. It's Orwellian. It invades our privacy. And it opens the door to costly new taxes that punish everyday drivers.

California already uses mileage tracking as a way to tax drivers in the name of ""climate change."" Hawaii is mandating it for electric vehicles. This is government overreach, plain and simple.

The Freedom to Move Act is a common sense amendment that would change Arizona's Constitution to permanently prohibit state and local governments from tracking and taxing our vehicle mileage. No other state constitution currently provides this protection. If Arizona voters approve this measure, we will be the first in the nation to proactively block these invasive programs.

We need to act now before Arizona follows the same path as states that started with ""voluntary"" pilot programs and ended up with mandatory tracking and per-mile fees. Once these systems are in place, they’re nearly impossible to reverse.

Protect your privacy. Protect your freedom to travel. Vote YES on Prop 141. You won't regret it."

Trevor Cook, Gilbert
Sponsored by Kaaren Sherrell

"Vote YES on Proposition 141

This measure protects Arizonans’ privacy, freedom of movement, and economic fairness by prohibiting the government from tracking, taxing, or limiting the number of miles you drive. Vehicle Miles Traveled (VMT) systems require monitoring how far, and where you travel, creating an unnecessary risk of government surveillance.

A VMT tax would function as a new tax on mobility, hitting rural residents, working families, tradespeople, and small businesses the hardest. Many Arizonans must drive long distances for work, school, and essential services, and a mileage-based tax would unfairly burden those who cannot simply “drive less.”

By placing this protection in the state constitution, voters retain full control over whether any VMT system could ever be adopted. I urge a YES vote to ensure that your miles remain your business, not the government’s."

James McFadzean, Tucson
Sponsored by Charles Mackey

Vote YES on Prop 141, the Freedom to Move Act.

Every day, Arizonans drive to work, drop kids off at school, run errands, and build their lives. Where you go and when you travel shouldn't become an excuse for the government to track or tax you. Yes, fuel-efficient and electric vehicles are cutting into gas tax revenue. But a budget problem doesn't automatically justify building a surveillance system around how much you drive. Arizona should look for smarter, less intrusive solutions before going down that road.

A mileage tax hits hardest the people who drive out of necessity, such as rural families, commuters, delivery drivers, contractors, and small business owners. They'd pay more simply for living their lives.

Roads need funding. Nobody's arguing otherwise. But taxing citizens mile by mile isn't the answer, and it sets a troubling precedent for government monitoring everyday movement.

The Freedom to Move Act draws a clear line: your travel is not the government's business. It blocks future lawmakers from creating systems that track, tax, or restrict how much Arizonans drive.

Vote YES on Prop 141. Protect your privacy. Protect your freedom to move.

Rob Paquette, Casa Grande
Sponsored by Charles Mackey

Vote YES on Prop 141, the Freedom to Move Act.

I work as a consultant and put thousands of miles on my car every year. The cost of gas and vehicle expenses is already significant. A mileage tax would add another layer of expense I can't afford, making it harder to stay in business.

Twenty-four states already have VMT programs that track and charge drivers per mile. Small businesses and independent professionals like me would be hit hardest. Every client visit, every work trip becomes another taxable event.

The Freedom to Move Act would make Arizona the first state to constitutionally ban mileage taxes and tracking. It protects people who drive for their livelihood.

Vote YES on Prop 141.

Sharon Merdovic, Scottsdale
Sponsored by Charles Mackey

Vote YES on Proposition 141, the Freedom to Move Act.
We already pay enough taxes. A vehicle mileage tax adds another government fee on top of what we're already paying at the pump. It's not necessary and it's not fair.
VMT programs also require tracking. That's a gross violation of our privacy. The government doesn't need to know where we drive, when we go, or how many miles we put on our cars.
Arizona can be the first state in the nation to constitutionally ban mileage taxes and government tracking of our travel. That's real protection that politicians can't undo without our permission.
Stop the tracking and the taxes. Vote YES on Proposition 141.

Valerie Williamson, Peoria

Your Car, Your Business: Vote YES on the Freedom to Move Act

A constitution's job is not to trust government. It is to deny government certain powers in advance, before the temptation to use them ever arrives. We do not wait for officials to abuse authority and then react. We withhold the authority. That is exactly what Prop 141 does.

Arizona does not currently track how far its citizens drive. That is precisely why now is the time to act. The cheapest moment to stop government surveillance of your movement is before the system is built, the budget is allocated, and an agency exists whose job is to keep it running. Powers that government acquires are rarely surrendered. Infrastructure built to monitor citizens is rarely dismantled. It is expanded.

Prop 141 takes one specific power off the table permanently: the power to monitor or limit how far you drive without your consent. It places that restraint in the Arizona Constitution itself, where a future legislature cannot quietly reverse it in a budget bill or a late-session amendment.

This is the case for liberty in its oldest sense, conserving freedom by refusing to let the machinery of surveillance be assembled in the first place. The question is not whether today's officials can be trusted. It is whether you want the power to track every Arizonan's movement to exist at all, waiting for someone, someday, to decide how to use it.

Your car is your business, not the government's. The safest surveillance system is the one that was never permitted to exist.
Vote YES on Prop 141, the Freedom to Move Act.

Eric Fowler, Chair, Maricopa County Libertarian Party, Phoenix
Sponsored by Maricopa County Libertarian Party

Please VOTE YES on Prop 141.

This measure will amend the Arizona Constitution to ban state and local governments from imposing any fee or tax based on miles driven, and from monitoring or limiting an individual's vehicle miles traveled.

Already, 37 states have been conducting research and 24 states have either a pilot program or an active program. Several of these states have set targets for limiting how much residents may drive. Many of these states use a GPS-based system which not only counts miles but also records a detailed log of everywhere you have been. This data would then be kept on file by the government, causing both privacy and data security concerns. This is why Arizona must act quickly to prohibit this type of government surveillance and provide appropriate privacy protections.

Such a Vehicle Miles Traveled (VMT) program is especially harmful for those with long commutes or those in professions requiring driving, such as truck drivers and delivery services. Since virtually all products are delivered by truck, VMT taxes could contribute to higher prices and inflation.

One key concern is that once a VMT program is approved, it could start with low mileage taxes or fees, but once in place the government would be in a position to easily raise those taxes and impose more stringent limitations on "allowed" mileage. I have close family members in California and often need to travel there to provide assistance. I cannot imagine the government telling me I have already reached my mileage limit and will not be allowed to drive there, not to mention the added expense.

VOTE YES ON PROPOSITION 141 to stop more taxation and government overreach.

Victoria Craig, Scottsdale

Vote YES on Proposition 141.

A vehicle mileage tax is an unnecessary and inefficient scheme that opens the door to government surveillance. We already have a perfectly good system for taxing vehicle energy consumption, and there's no reason to replace it with invasive tracking.

Look at how we tax gasoline. The meter at the pump measures the volume dispensed and assesses the appropriate tax per gallon. It's simple, efficient, and requires no tracking of where you drive or how far you travel. We can apply the exact same principle to electric vehicles without any mileage monitoring.

Electric charging stations already have meters that measure energy dispensed in kilowatt hours. Those meters can assess the appropriate tax on each electric charge, just like a gas pump does gas. The electric company collects the tax and pays it to the state. Separate meters can be installed for vehicle charging at home and at public stations, keeping vehicle energy consumption separate from household or commercial use. The infrastructure is already there.

A mileage tax isn't about funding roads. It's about creating a system to track your movements and control how much you drive. Twenty-four states already have active VMT programs that monitor not just how far you drive, but often where and when. Arizona doesn't need this kind of government overreach.

The Freedom to Move Act would ban mileage tracking and taxation. Vote YES on Proposition 141.

William Sandry, Apache Junction
Sponsored by Charles Mackey

Vote YES on Proposition 141!

We moved to Arizona to retire and enjoy the outdoor activities, scenery, and travel that our state offers. Real life also includes volunteer work and family duties. Being with our five grandchildren, taking them to their activities, and shopping is fun. A trip to the ice cream store or pizza after the soccer game. These are the simple joys of retirement and family life.

The cost of gasoline and car maintenance is already hard on a fixed income. Adding a vehicle miles traveled tax would make life more costly and difficult than ever. We would have to budget how much we can drive, too.

I hear that states like Oregon, Utah, or Virginia, plan to impose invasive tracking methods on top of these costly policies! I believe that a vehicles mileage tax has to be avoided for our open, freedom loving state. A per-mile tax is cost-prohibitive for retirees and families who drive because they want to spend time together, especially when they have limited budgets. Every trip to see the grandkids, every volunteer shift, every errand becomes another line item to track and pay for. What about our neighbors who have to drive miles to go to work?

We cannot let this happen to Arizona! Please vote YES to protect Arizonans!

Arizona can lead the way! Vote YES on Proposition 141.

Gerald Travers, Oro Valley
Sponsored by Charles Mackey

The authors of the Arizona Constitution could not have envisioned the technology present today that requires a constitutional amendment to preserve the rights that the original framers intended. Article 2, section 8 states "No person shall be disturbed in his private affairs, or his home invaded, without authority of law." Driving a vehicle to whatever destination a person chooses is indeed a private matter. The problem with simply tracking vehicle mileage also includes locations where someone has driven and all the other data associated with capturing that related information.
The other problem with tracking vehicle miles driven is that it's the first step into the World Economic Forum 15-minute cities scenario as well as the eventual ability to limit vehicle travel altogether due to "climate Change".
Arizona was founded on pioneers, visionaries and risk takers. Freedom to Move should be considered our birthright. Our Freedoms, which include Freedom to Move must be protected at all costs and not surrendered to some faceless bureaucracy. Freedom to Move must be enshrined in our Arizona Constitution. Vote YES on Freedom to Move!

Dennis Liles, Mesa

A "Vehicle Miles Traveled" tax is a terrible idea: it's intrusive, unfair, and won't work. For years, governments at every level have pushed drivers toward more fuel-efficient vehicles, electric-vehicle mandates, and mass transit. How do they reward us for driving less and lowering our fuel consumption? Tax-and-spend lawmakers want to penalize us for paying less in gas taxes.

The penalty takes the form of a mileage tax. Visualize the government putting a GPS on your car that records every mile driven, reports to the government, and sends you a bill. What happens if you forget to pay? If the bill gets lost? I shudder to think.

A different version of this scheme requires drivers to track their own mileage and report it to the government on their tax returns. Imagine the burden on the Arizona Department of Revenue to ensure compliance among millions of drivers. Think, too, of the nightmarish paperwork, particularly in households with several drivers sharing multiple vehicles. What about our friends whose work requires them to drive from appointment to appointment throughout the day to make a living? How much of their income will be lost to this tax?

It's a scheme that hits rural drivers, long-distance commuters, low-income families, farmers/ranchers, and those who must drive more due to their jobs or lack of transit harder than urban dwellers with shorter trips or alternatives. It penalizes necessary travel without accounting for the ability to pay or alternatives. It's just not fair.

Arizonans enjoy the freedom of the open road along our scenic byways without the long arm of government. We will wisely prevent this bad idea from taking root in Arizona by voting Yes.

Sydney Hay, President, AMIGOS, Scottsdale

Vote YES on Prop 141, the Freedom to Move Act.

We pay taxes to use and maintain the roads by our gasoline purchases. Arizonans want the right to be free to travel where they want without the government looking over their odometers. That's surveillance, not transportation policy.

Surveys of drivers in VMT pilot programs consistently ranked privacy and data security as top concerns. That's because these systems don't just count miles. They create detailed logs of everywhere you've been.

This is a free country and we should act like it. Arizonans deserve the right to travel freely without government monitoring. The Freedom to Move Act would make Arizona the first state to constitutionally ban mileage tracking and taxation.

Vote YES on Prop 141.

Peggy Baillie, Prescott Valley
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141 to stop an unfair tax on people who need their vehicles to earn a living.

A per-mile tax doesn't hit everyone equally. It punishes the people who depend on their vehicles for their livelihood like those working in the trades, delivery drivers, contractors, and sales reps. If you drive for work, every mile becomes a new tax on your ability to make a living, which also increases costs for all of us.

Some states already have VMT programs tracking drivers and charging them for every mile they drive. Arizona needs to draw the line now. The Freedom to Move Act would constitutionally ban mileage taxes and tracking, protecting workers who can't afford another burden on top of what it already costs to operate a vehicle, and protecting consumers at a time when the cost of living keeps increasing.

Vote YES on Prop 141 to make sure Arizonans never have to worry about a tax like this.

Janice Kohles, Prescott
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141 to stop the government from tracking and taxing your every move.

A mileage tax isn't just another fee. It's government surveillance with a fee. They track where you go, when you go, how often, and then they charge you for it.

Prop 141 gives us the chance to be the first state to get out in front of this issue and protect us from invasive mileage tracking and taxing. With Prop 141, our state constitution will ensure no level of government can ever impose a charge on how, when, and where you drive.

I want to keep the freedom to get in my car, and drive where I need or want, without adding up the cost first or sending my driving information to any level of government. The Freedom to Move Act keeps that freedom here in Arizona, permanently. Vote YES on Prop 141.

Kathy Parkes, Wickenburg
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141 to protect access to medical care.

I don't drive much anymore. But when I need to get to my doctor's appointments, I have to be able to go without worrying about the government tracking my trips or charging me extra for every mile.

A mileage tax would punish people who depend on their cars for essential needs like medical care. We shouldn't have to pay

the government just to see our doctors or pick up our prescriptions.

Vote YES on the Freedom to Move Act, Prop 141.

Don Johnson, Sahuarita
Sponsored by AZ Free Enterprise Club

Vote YES on Proposition 141, the Freedom to Move Act.

I value my freedom to move throughout Arizona and the country without being tracked or taxed by the government. That's a basic right we shouldn't surrender.

VMT programs don't just count miles. They record where you've been. Utah tracks drivers using plug-in devices and smartphone apps with location data. Virginia's program tracks with or without GPS. That's surveillance, not transportation policy.

Arizona can be the first state to constitutionally ban mileage tracking and taxation. The Freedom to Move Act protects our right to travel freely without government interference.

Vote YES on Prop 141.

Tony Dudzinski, Peoria
Sponsored by AZ Free EnterpriseClub

Vote YES to Protect Arizona's Workforce and Keep Housing Affordable

Every home built, remodeled, repaired, and maintained in Arizona depends on people who drive. Framers, roofers, electricians, plumbers, HVAC techs, and their suppliers don't work from an office. They work from a truck, crossing the state, often visiting three and four job sites in a single day, bringing their tools, materials, and equipment with them to build or do work on your home.

A vehicle mile traveled ("VMT") tax would charge these workers and the businesses that employ them for every single mile driven. For a residential framing crew running between job sites in Buckeye, Queen Creek, and Maricopa or a roofing company that reroofs homes from Gilbert to Surprise and even Prescott, that's not a minor inconvenience, but a direct tax on doing their job.

That cost then gets factored into the price of the home or service bill for your HVAC tune up. Trades bid jobs based on the cost to operate, and transportation is already a significant cost alongside insurance, wages, and materials. Add a per-mile government-imposed tax, and every trade on a job site or on a service call may raise its bid to cover it. Multiply that across every truck, every trip, and every subcontractor on every home built across Arizona, and the increased costs are staggering. In a state where Arizona families are watching every dollar due to high housing costs, a VMT tax would be the wrong direction.

Our hardworking trade partners should not be punished for earning a living building our homes. As other states consider costly VMT taxes, Arizona should take this burdensome tool off the table by amending our Constitution to permanently prohibit this bad policy.

Vote YES on the Freedom to Move Act.

Jackson Moll, CEO, Home Builders Association of Central AZ, Phoenix
Sponsored by Home Builders Association of Central AZ

Vote YES on Proposition 141, the Freedom to Move Act.

I'm voting on this measure because it protects Arizona drivers who are legally just exercising their rights. No one wants to be

taxed for every mile that they drive and be constantly surveilled.

Also, Arizona doesn't have a revenue problem. We have a spending problem. Our taxes have had no shortage in the past to maintain our roads. If the state is claiming it needs more money now, perhaps it's time to cut spending and programs we are not able to afford. You can't spend your way out of debt, and we shouldn't accept new tracking technology and new taxes just because the government refuses to live within its means.

The Freedom to Move Act would be an important legal shield protecting Arizonans freedom to travel around the state without penalty and it holds government accountable to prioritizing its budget instead of raiding our pocketbooks and invading our privacy.

Vote YES on Prop 141.

Shaulon McDaniel, Coolidge
Sponsored by AZ Free Enterprise Club

Vote YES on Proposition 141, the Freedom to Move Act, to protect constitutional rights and stop government overreach.

Constitutional rights and freedoms in Arizona face serious threats. From mass surveillance systems to unchecked collection and sharing of personal information, citizens' rights to privacy and anonymity are in peril. The Freedom to Move Act is a critical step in restricting government tracking, taxing, and travel restriction overreach.

VMT programs currently operating in two dozen states would open a Pandora's Box for federal, state, and local agencies to collect even more personal information while implementing yet another unnecessary taxation scheme. These systems involve unrestricted data collection that creates detailed profiles of a person's movements, contacts, and habits, collected without individualized suspicion or judicial review. This bypasses Fourth Amendment protections against unreasonable search and seizure.

There are no restrictions on how this data can be used and no recourse for those injured by unauthorized collection. Once implemented, VMT opens the door for even more overreach.

A per-mile tax impacts those who must travel for their livelihood and inflates costs of delivered goods and services for all consumers. It's a double hit for overburdened taxpayers.

Arizona does not need more government monitoring or unfair taxation schemes. No other state constitution currently protects against VMT programs. The Freedom to Move Act will preserve individual freedoms and provide a constitutional check to protect Arizona citizens.

Vote YES on Proposition 141.

Jerry Pittman, Prescott
Sponsored by AZ Free Enterprise Club

Vote YES on Prop 141 to stop unnecessary taxes on your freedom to move.

We already pay enough to maintain our roads - sales taxes, gas taxes, highway user funds... A mileage tax would just be an additional burden. It creates yet another way for the government to collect more money than they need and waste it on foolish projects like light rail. There is so much waste in transportation spending, the last thing we need to do is hand over more of our hard-earned money to the government needlessly.

Also, VMT taxes are being used by other states to manipulate the way people choose to travel, as a cudgel against personal vehicle use. If they can make driving more expensive, despite it being preferable to most people, then they believe they can push people into making the "better" choice - walking, biking, or boondoggle public transit. This, especially in a state like Arizona that is spread out and hot 6 months out of the year, is nonsensical.

Hold government to account and protect citizens' freedoms and choices by voting YES on Prop 141!

Randal Scott, Sun City West
Sponsored by AZ Free Enterprise Club

Vote YES on Proposition 141 to protect your freedom to drive.

Arizonans drive. To work, school, the doctor, church, jobsites, and family across the state. In Arizona, driving is not a luxury or lifestyle choice. It is how people get through daily life, earn a living, care for family, and stay connected across a large, spread-out state. That freedom is worth protecting, and it is under threat.

Across the country, states are already testing and using vehicle miles traveled taxes, or VMT taxes, as a new way to charge people for driving their own cars. Proponents claim it will replace the gas tax. But instead, it's likely to become another tax layer, piled on top of gas taxes, registration fees, tolls, and other charges motorists already pay.

To collect a VMT tax, government needs to know where and how much you drive. Once that tracking infrastructure exists, it can be used to cap annual mileage or charge escalating rates after a mileage allowance. Some states already have laws or proposals to reduce how much people drive. Other plans would charge more per mile if an agency decided your trip should have been taken by bus, bike, or on foot. SUV and light-truck owners could be charged more simply for the vehicle they chose.

This is not just another tax debate. Driving is independence. It is the reason Americans can live, work, raise families, and build businesses where and how they choose. A tax on miles is a tax on that independence.

Proposition 141 stops this before it starts. It amends Arizona's Constitution to prohibit government from tracking, taxing, or limiting the miles you drive. Arizona doesn't need a new tax bureaucracy that gives government more power to control our lives.

Vote YES on Proposition 141. Keep Arizona free to drive.

Jay Beeber, Executive Director – Policy, National Motorists Association, Phoenix
Sponsored by National Motorists Association

Arizona's roads and highways are essential to our economy and quality of life. They require reliable transportation funding.

Arizona's transportation system faces significant funding challenges, and additional investment will be needed to maintain and expand our roads and highways. However, a Vehicle Miles Traveled (VMT) tax is not the solution.

The trucking industry has decades of firsthand experience with a mileage-based tax through Arizona's Weight Distance Tax. That experience has taught us an important lesson: taxing miles traveled is far more complicated and costly than it may appear.

Supporters of mileage-based taxes often point to new technology as a solution. Arizona's experience suggests otherwise. Whether miles are recorded on paper logs, electronic devices, GPS systems, or onboard computers, a VMT tax still requires miles to be tracked, reported, verified, audited, and enforced. Technology may change the tools, but it does not eliminate the complexity, administrative burden, potential for evasion, or compliance costs inherent in the system.

Unlike fuel taxes, which are collected efficiently at the point of sale, mileage-based taxes require ongoing reporting, oversight, and enforcement. Government agencies must devote resources to audits and compliance, while taxpayers and businesses bear additional recordkeeping and reporting costs. Those dollars are spent operating the tax system instead of improving roads and bridges.

We need to modernize our transportation funding system and ensure that everyone who uses our roads contributes fairly to their maintenance. A Vehicle Miles Traveled tax is simply not the most efficient way to achieve that goal.

For these reasons, the Arizona Trucking Association supports the Freedom to Move Act. It protects Arizona taxpayers from a costly and burdensome Vehicle Miles Traveled tax while allowing policymakers to pursue more efficient transportation funding solutions in the future.

Vote YES on Freedom to Move.

Tony Bradley
President & CEO
Arizona Trucking Association

Tony Bradley, President and CEO, Arizona Trucking Association, Tolleson

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Vote YES on Proposition 141.

From wide-open highways cutting through desert landscapes, lanes carving through mountains, bridges traversing valleys and open water, the Freedom to Move is engrained in the American spirit. We often don't notice it, but we all value the freedom our vehicles and roads give us: to live where we want, work where we want, and drive to the doctor, school, restaurant, grocery store of our choice without having to live next door. Our choices are untethered from our street address.

Beyond work, education, and healthcare, our freedom to move gives us simpler joys too. From driving to a scenic valley lookout at night, the perfect camping spot up north, or just cruising with the windows down, these everyday pleasures, taken for granted, exist because of automobiles and our freedom to use them. Now some want to upend this piece of Americana by tracking, limiting, and charging you for every mile you drive.

Across the country, states are building expansive infrastructure to tax you by the mile, also requiring invasive government tracking of every drive, so you can later be charged. Some states are even pushing hard caps on annual mileage. This threat is real, and Arizona has the chance to stop it first with Proposition 141, which would amend our Constitution to permanently bar government from tracking, taxing, or limiting the miles you drive.

Vote YES to preserve your privacy. Vote YES to keep Arizona affordable. Vote YES to preserve your freedom to move.

Vote YES on Proposition 141.

Scot Mussi, President, AZ Free Enterprise Club, Tempe
Sponsored by AZ Free Enterprise Club

Vote YES on Proposition 141, the Freedom to Move Act.

I don't want the government tracking where I drive or monitoring how many miles I travel. That's my private business, not theirs. The Freedom to Move Act would protect Arizonans by restricting the government from imposing mileage taxes or tracking systems that record our movements.

Many other states already have programs that use GPS devices, smartphone apps, or plug-in trackers to monitor drivers and charge per-mile fees. These systems don't just count miles. They can record exactly where you go, creating a detailed log of your daily life stored in a government database.

Freedom to travel without government surveillance is a basic right. Arizona should be leading the nation in protecting that freedom, not following states that are already tracking their residents.

This amendment puts permanent constitutional protections in place that only voters can change. Vote YES on Proposition 141.

Douglas Bailllie, Prescott Valley
Sponsored by AZ Free Enterprise Club

ARGUMENTS "AGAINST" PROPOSITION 141

Vote NO on the Arizona Prohibit Taxes or Fees on Miles Traveled in Motor Vehicle Amendment for the following reasons:

1) Arizona's transportation system improvements are funded primarily by a tax assessed per gallon of fuel purchased. Over time, revenues from this fuel tax have eroded due to inflation, fuel-efficient vehicles, and electric vehicles. Arizona's Long Range Transportation Plan identified $231.4 billion is needed for transportation projects over the next 25 years, but only $69.1 billion of forecasted revenue using the existing fuel tax, leaving a funding gap of $162.3 billion. That means only 30% of needed transportation improvements can be funded. Do you want only 30% of road potholes filled? Or only 30% of bridges kept in good condition?

2) To address this huge funding gap, we need more options–not fewer options–for generating the needed revenue to keep Arizona's transportation system in good shape. A tax/fee based on vehicle miles traveled is one potential funding mechanism that would more equitably assess vehicles for their proportional "wear-and-tear" on the transportation system. While a vehicle miles traveled tax/fee is not the only funding option to generate additional revenue, it seems short-sided and premature to prohibit it before even conducting analysis to determine if it could be an effective way to help alleviate Arizona's transportation funding crisis.

If you want funding options for a safe, efficient, and well-maintained transportation system in Arizona, vote NO on this constitutional amendment measure.

Michael Grandy, Traffic Engineer and Road Safety Professional, Gilbert

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Prop 141 is a ludicrous, conspiracy-fueled waste of our time — but it would have real-world consequences.

Based on an absurd myth from fringe extremists, this legislative referral would prevent Arizona's ever-increasing number of electric vehicle owners from paying their fair share of the actual costs of road construction and repair.

Anyone who drives a gas-fueled vehicle pays 18 cents in tax on every gallon of gas. Meanwhile, plug-in EVs are getting a free pass, because they don't pay gas taxes. One strategy for leveling the playing field would ask them to contribute based on miles traveled. Prop 141 would change our state Constitution to keep that from ever happening.

Years of deferred maintenance are taking a toll on Arizona's roads. Arizona has the third-worst maintained highways in the nation, with only 35% of our pavement in good condition. Meanwhile, Arizona's gas tax doesn't account for inflation and hasn't gone up in decades. Its buying power is now roughly half what it used to be.

How are we going to fix our roads? The same far-right conspiracy theorists who think the government wants to keep Americans from traveling freely are trying to cement their nonsense into the state Constitution. They've allowed our state's road maintenance to spiral into a crisis, and now they want to make it worse by fooling us into passing Prop 141? No thanks.

Voters have better things to do than deal with this type of clutter on our ballots. We hope lawmakers will work harder in the future to find more substantive projects that benefit the Arizona voters they purport to serve. We urge you to vote NO.

Melinda Iyer, Co-Director, Civic Engagement Beyond Voting, Phoenix and Catherine Sigmon, Co-Director, Civic Engagement Beyond Voting, Tempe
Sponsored by Civic Engagement Beyond Voting

As Chair of the Arizona State Transportation Board and President/CEO of the Southern Arizona Leadership Council, I urge voters to reject Proposition 141.
Arizona's infrastructure is the backbone of a strong economy. Every day, businesses, workers, and families depend on a safe and reliable transportation system to move goods, access jobs, and keep our economy growing.
At first glance, this proposal may sound like it protects privacy and prevents new taxes. In reality, it would limit Arizona's

ability to plan, modernize, and responsibly fund the transportation system we all rely on.
Today, Arizona's roads and highways are funded mainly through gas taxes, vehicle registration fees, and federal dollars. Those revenue sources are struggling to keep pace with our population growth, rising construction costs, and increasingly fuel-efficient vehicles that generate less gas tax revenue. Electric vehicles do not pay fuel taxes, yet contribute to wear and tear on our roads, further straining a system that relies heavily on gas tax revenue. As a result, Arizona already faces significant long-term transportation funding challenges.
Rather than allowing policymakers to explore future solutions, Proposition 141 would permanently prohibit consideration of vehicle-miles-traveled (VMT) funding options, even voluntary or pilot programs designed to evaluate whether such approaches could work for Arizona. It would also restrict state and local governments from studying innovative funding models that may be needed as transportation technology and travel patterns continue to evolve.
This measure would lock Arizona into outdated constraints and make it harder to modernize how we fund critical infrastructure. Other states are responsibly studying these tools, and Arizona should be able to do the same.
This measure removes important policy options and limits Arizona's ability to meet the infrastructure demands of a growing state and remain economically competitive.
For these reasons, I urge a NO vote on Proposition 141.

Ted Maxwell, President/CEO, Southern Arizona Leadership Council, Oro Valley

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Communities across Arizona are struggling to afford the cost of building and maintaining roads. With the proliferation of electric vehicles and cars becoming generally more efficient, returns from the fuel tax that funds the bulk of Arizona's highway system have been diminishing even as our needs as a growing state are expanding. Proposition 141 effectively shuts down a potential solution to the problem.

As a transportation planner in rural Arizona and a member of the House Transportation Committee, I was involved in discussion about this issue years ago. A tax on vehicle miles travelled (VMT), which would actually reflect how people use the roads, was seen as a potential solution, if it could be made to work. Even now, this remains mostly theoretical, and it seems that this is mostly a boogieman raised by partisan think-tanks to end any talk of addressing a status quo that simply is not working for Arizonans.

The state currently suffers from an estimated $68 billion in unmet needs to our transportation system. This is particularly acute in rural areas, where people do more driving, and, therefore, under the current system, are effectively subsidizing road improvements in urban and suburban areas and seeing little return in their own communities. Proposition 141 maintains this inequity and threatens public safety and economic development in rural Arizona.

Proposition 141 is meant to silence any conversation of addressing Arizona's real transportation needs and closes the door on innovation. It deserves a "no" vote.

TOM PREZELSKI
Senior Policy Advisor
Rural Arizona Action

Tom Prezelski, Senior Political Advisor, Rural Arizona Action, Coolidge
Sponsored by Rural Arizona Action

SCR 1004 - Prohibits the state from taxing drivers based on the number of miles driven. This is another wackadoodle Hoffman measure that never would have made it past the Governor's veto pen but has been pushed onto the November ballot giving us a two-page, four-sided ballot. Gee thanks Jake! By having to report a driver's miles, he believes that the government could use that information against a driver. I believe that the advent of electric vehicles and all the new modes of transportation available to the consumer requires us to give deep consideration to all forms of data required to make intelligent decisions that will affect so much in the future, not make kneejerk reactions. Vote No on Proposition SCR 1004.

Timothy Everhard, Director, Arizonans for Freedom, Peoria

BALLOT FORMAT

PROPOSITION 141

PROPOSED AMENDMENT TO THE CONSTITUTION BY THE LEGISLATURE RELATING TO TAXATION

OFFICIAL TITLE AMENDING ARTICLE IX, CONSTITUTION OF ARIZONA, BY ADDING SECTION 26.
DESCRIPTIVE TITLE PROHIBITS TAXES OR FEES BASED ON VEHICLE MILES TRAVELED AND LAWS MONITORING OR LIMITING VEHICLE MILES TRAVELED WITHOUT CONSENT.

A "yes" vote shall have the effect of amending the Arizona Constitution to prohibit: (1) taxes or fees based on motor vehicle miles traveled; and (2) laws or rules that monitor or limit motor vehicle miles traveled without consent. These prohibitions do not apply in certain instances to interstate commercial vehicles or to vehicles owned by the state or local governments.	**YES** ☐
A "no" vote shall have the effect of maintaining the current constitutional language related to taxation.	**NO** ☐